

(2)

No. 95-507
IN THE
SUPREME COURT OF THE UNITED STATES

Supreme Court, U.S.
FILED

OCT 25 1995

October Term 1995

BRITTNEY KAYE SETTLE,

Petitioner,

v.

DICKSON COUNTY SCHOOL BOARD, et al.,

Respondents.

On Petition for Writ of Certiorari to the
United States Court of Appeals for the Sixth Circuit

**RESPONDENTS' BRIEF IN OPPOSITION TO
PETITION FOR WRIT OF CERTIORARI**

Laurence M. McMillan, Jr.
Counsel of Record
**CUNNINGHAM, MITCHELL, HICKS,
BROLLIER & McMILLAN**
310 Franklin Street
Clarksville, TN 37040
(615) 552-1480

Allan D. Kerns
Attorney at Law
220 N. Main Street
Post Office Box 546
Dickson, TN 37055
(615) 446-2304

Counsel for Respondents

QUESTION PRESENTED

May a secondary school teacher control curriculum based student speech when the control exerted is "reasonably related to a legitimate pedagogical concern."

REPORT OF THE

COMMISSIONERS OF THE
LAND OFFICE
IN RESPONSE TO A RESOLUTION
PASSED BY THE HOUSE OF
REPRESENTATIVES
JANUARY 18, 1890

LIST OF PARTIES

Pursuant to Supreme Court Rules 14.1(b) and 24.2, the parties to this proceeding are:

Petitioner:

Brittney Kay Settle, by Next Friend,
Jerry Settle

Respondents:

The Dickson County School Board;
George Caudill, in his official
capacity as Superintendent of
Dickson County Schools, Reed Evans,
in his official capacity as
Principal, and Dana Ramsey, in her
official capacity.¹

1. In her application, Petitioner claims that Ms. Dana Ramsey is sued in her official capacity, when, in fact, the Complaint raises an individual capacity claim, to which the defense of qualified immunity was asserted. It is presumed that the individual capacity claim has now been abandoned.

LIST OF TABLES

The tables in this report are
numbered 1 through 10, and are
located on pages 10 through 19.

TABLE 1

Summary of Data, by State
and District

TABLE 2

The following tables show the
results of the 1950 election
for the various offices in
the various districts. The
results are given in the
order in which the offices
were elected, and in the
order in which the districts
were numbered.

TABLE 3
The following table shows the
results of the 1950 election
for the various offices in
the various districts. The
results are given in the
order in which the offices
were elected, and in the
order in which the districts
were numbered.

TABLE OF CONTENTS

	Page
QUESTION PRESENTED	i
LIST OF PARTIES	ii
TABLE OF CONTENTS	iii
TABLE OF AUTHORITIES	iv
OPINIONS BELOW	1
CONSTITUTIONAL PROVISION INVOLVED	2
STATEMENT OF THE CASE	3
SUMMARY OF THE ARGUMENT	10
REASONS FOR DENYING THE WRIT	11
I. THE SIXTH CIRCUIT PROPERLY VIEWED THIS CASE UNDER THIS COURT'S HOLDING IN <u>HAZELWOOD</u>	11
II. PETITIONER'S VIEWPOINT DISCRIMINATION ARGUMENT IS INAPPOSITE TO THE FACTS IN THIS CASE	13
CONCLUSION	15

TABLE OF AUTHORITIES

Cases	Page(s)
<u>Hazelwood School District v. Kuhlmeir,</u> 484 U.S. 260, 108 S. Ct. 562, 98 L. Ed. 2d 592 (1988)	7, 10, 11, 12, 13, 15
<u>Lamb's Chapel v. Center Moriches Union Free School District,</u> 113 S. Ct. 2141 (1993)	13
<u>Rosenberger v. Rector and Visitors of the University of Virginia,</u> 115 S. Ct. 2510 (1995)	13
<u>Tinkler v. Des Moines Community School District,</u> 393 U.S. 503, 89 S. Ct. 733, 21 L. Ed. 2d 731 (1969)	7
 Statutes	
42 U.S.C. §1983	3, 6

TABLE OF CONTENTS

Page	Chapter
1	Introduction
2	1. The Problem
3	2. The Method
4	3. The Results
5	4. The Discussion
6	5. The Conclusion
7	6. The Acknowledgments
8	7. The References
9	8. The Appendix
10	9. The Bibliography
11	10. The Index
12	11. The Glossary
13	12. The List of Figures
14	13. The List of Tables
15	14. The List of Equations
16	15. The List of Symbols
17	16. The List of Abbreviations
18	17. The List of Acronyms
19	18. The List of Initials
20	19. The List of Surnames
21	20. The List of First Names
22	21. The List of Middle Names
23	22. The List of Nicknames
24	23. The List of Titles
25	24. The List of Degrees
26	25. The List of Honors
27	26. The List of Awards
28	27. The List of Medals
29	28. The List of Orders
30	29. The List of Decorations
31	30. The List of Crosses
32	31. The List of Stars
33	32. The List of Ribbons
34	33. The List of Badges
35	34. The List of Pins
36	35. The List of Buttons
37	36. The List of Straps
38	37. The List of Buckles
39	38. The List of Chains
40	39. The List of Medallions
41	40. The List of Pendants
42	41. The List of Earrings
43	42. The List of Necklaces
44	43. The List of Bracelets
45	44. The List of Rings
46	45. The List of Watches
47	46. The List of Clocks
48	47. The List of Thermometers
49	48. The List of Barometers
50	49. The List of Hygrometers
51	50. The List of Anemometers
52	51. The List of Windmills
53	52. The List of Watermills
54	53. The List of Windmills
55	54. The List of Watermills
56	55. The List of Windmills
57	56. The List of Watermills
58	57. The List of Windmills
59	58. The List of Watermills
60	59. The List of Windmills
61	60. The List of Watermills
62	61. The List of Windmills
63	62. The List of Watermills
64	63. The List of Windmills
65	64. The List of Watermills
66	65. The List of Windmills
67	66. The List of Watermills
68	67. The List of Windmills
69	68. The List of Watermills
70	69. The List of Windmills
71	70. The List of Watermills
72	71. The List of Windmills
73	72. The List of Watermills
74	73. The List of Windmills
75	74. The List of Watermills
76	75. The List of Windmills
77	76. The List of Watermills
78	77. The List of Windmills
79	78. The List of Watermills
80	79. The List of Windmills
81	80. The List of Watermills
82	81. The List of Windmills
83	82. The List of Watermills
84	83. The List of Windmills
85	84. The List of Watermills
86	85. The List of Windmills
87	86. The List of Watermills
88	87. The List of Windmills
89	88. The List of Watermills
90	89. The List of Windmills
91	90. The List of Watermills
92	91. The List of Windmills
93	92. The List of Watermills
94	93. The List of Windmills
95	94. The List of Watermills
96	95. The List of Windmills
97	96. The List of Watermills
98	97. The List of Windmills
99	98. The List of Watermills
100	99. The List of Windmills
101	100. The List of Watermills

NO. 95-507

BRITTNEY KAYE SETTLE,
Petitioner,

v.

DICKSON COUNTY SCHOOL BOARD, et al.,
Respondents,

RESPONDENTS' BRIEF IN OPPOSITION

TO THE HONORABLE SUPREME COURT:

The Respondents, DICKSON COUNTY SCHOOL BOARD, GEORGE CAUDILL, REED EVANS, and DANA RAMSEY, respectfully request that this Court deny the Petition for a Writ of Certiorari submitted by Petitioner, BRITTNEY KAY SETTLE.

OPINIONS BELOW

The opinion of the Court of Appeals (Pet. App. 1-16) is reported at 53 F. 3d 152 (6th Cir. 1995). The opinion of the District Court (Pet. App. 19-29) is unreported.

CONSTITUTIONAL PROVISION INVOLVED

The First Amendment to the U.S. Constitution provides:

Congress shall make no law...abridging the freedom of speech....²

2. In her application, Petitioner cites both the establishment clause and the free exercise clause as being involved in this case. However, these two clauses were not relied upon below.

STATEMENT OF THE CASE

1. This is a Civil Rights case brought pursuant to 42 U.S.C. Section 1983. Petitioner claims that her first amendment freedom of speech rights were violated when she was not allowed to write her ninth grade research paper on a topic of her choice; notwithstanding her failure to meet certain deadlines regarding the paper and notwithstanding any attempt by her to obtain specific permission from her teacher to change or modify her topic.

2. On March 15, 1991, Defendant Dana Ramsey, a ninth grade teacher at Dickson County Junior High School ("DCJH"), assigned a research paper to her class. (J.A. 27)³ The purpose of the paper was to teach her students how to gather information, write a paper using this information, but above all, to learn the process of learning so that when the students got out of school they would know how to go about finding information on a topic they would be interested in. (J.A. 6). Selection of the topic was left entirely up to the student provided that the topic was interesting, researchable, and something that would enable the student to learn the process. (J.A. 29). Ms. Ramsey required four resources for the paper even though the school library was small. (J.A. 30).

3. "J.A." refers to the Joint Appendix in the Court of Appeals.

The students were given from March 15 through March 22 to select a topic and indicate their selection on a sign-up sheet posted in the classroom. (J.A. 37-38). The students could change their subject at any time during this period simply by scratching off the previous subject and adding a new one. (Id). On Friday, March 22, Ms. Ramsey removed the sign-up sheet. (Id). After the list was removed, it was not impossible for the students to change their topic, but only after notifying Ms. Ramsey and obtaining her specific approval, and explaining why the topic was to be changed. (J.A. 42). On Tuesday, March 26, the students were to submit their preliminary outlines, and no changes were allowed after that date, except for "modification" of issues within the topic. (J.A. 31, 32, 37).

After originally signing up for the topic of "Drama," Petitioner changed her mind and decided on a new topic. On the morning of March 26, and after the deadline for topic change, Petitioner attempted to hand in an outline entitled the "Life of Jesus Christ" without having first asked for approval. (J.A. 43). This type of unilateral topic change was a concern for Ms. Ramsey because "One of the problems you have with kids this age who've never done this -- It's kind of like a cow: the grass is always greener on the other side. So rather than sitting down and digging into a topic, they think the answer to the problem of organization is just to change topics." (J.A. 44). Ms. Ramsey rejected the change, and after class explained to the

Petitioner that she failed to follow the proper procedure and that this new topic would "not fit in with what [she] was trying to do and that it would be better to work with the drama topic." (J.A. 44). In addition, she told the Petitioner that the new topic was inappropriate because it dealt with Petitioner's personal religion and would be a difficult topic to write about objectively. (Id). Later that afternoon, Ms. Ramsey told the Petitioner that her choice of topic "could lead to a bad experience." (J.A. 45-46). In addition, Ms. Ramsey gave Petitioner another chance to submit a different topic on the following day without penalty because she felt Petitioner may not have understood the procedure or may not have truly wanted to write on drama. (J.A. 60).

In fact, Ms. Ramsey told Petitioner that she could write a paper with religious aspects as long as it did not solely deal with her personal religious redeemer. (J.A. 69). This offer was rejected by Petitioner based upon the advice of counsel. (Id).

On March 28, Mr. Settle, Petitioner's father, contacted Reed Evans, Principal of DCJH. (J.A. 166). He wanted to know why Ms. Ramsey allowed writings on spiritualism, the occult, and reincarnation and would not allow his daughter to write on the life of Jesus Christ. (Id). Mr. Evans then talked with Ms. Ramsey and learned that Petitioner failed to follow proper procedures. (J.A. 167, 170). Based upon

this information, he then gave Ms. Ramsey his full support for her decision. A meeting took place on March 27 between Mr. Evans, Mr. Settle and Ms. Ramsey in which Mr. Evans agreed to look further into the matter. (Id). Mr. Evans then talked to Ms. Ramsey about the situation and again based his decision on Petitioner's failure to follow proper procedures. (Id).

Mr. Settle also called George Caudill, superintendent of the Dickson County school system, which led to a meeting between Caudill, Evans, and Ramsey. Following up his investigation, Caudill called Settle and told him that Ms. Ramsey had the right to draw the parameters and guidelines in her classroom. (J.A. 184-185). Since it was his understanding that Petitioner did not comply with the procedural guidelines for the paper, he told Mr. Settle that he fully supported Ms. Ramsey's actions. (Id).

3. Petitioner brought suit pursuant to 42 U.S.C. §1983 against Respondents on July 18, 1991, in the United States District Court for the Middle District of Tennessee. Petitioner asserted that her First Amendment free speech rights were violated by Respondents by not allowing her to write her ninth grade research paper on a topic of her choice. (J.A.1)

Respondents answered denying that Petitioner's free speech rights had been violated, and asserted that there was no unconstitutional custom or policy

existing in Dickson County which violated Petitioner's free speech rights. Respondent, Dana Ramsey, also asserted the defense of qualified immunity. (J.A. 196).

Both parties moved for Summary Judgment. The District Court, rejecting the strained analysis offered by Petitioner that Tinkler v. Des Moines Community School District, 393 U.S. 503, 89 S.Ct. 733, 21 L. Ed. 2d 731 (1969) supplied the rule of decision in this case, held that Hazelwood School District v. Kuhlmeir, 484 U.S. 260, 108 S. Ct. 562 98 L. Ed. 2d 592 (1988),

provides the appropriate rationale and the controlling rule of law on these facts. This case does not present an issue of personal expression but, rather, one of the school's "...control over...the school curriculum." Id. at 271. Here, the research paper assignment was designed not to elicit personal views or beliefs, but to teach research and writing skills. It was part of the regular school curriculum and was supervised by faculty. Petitioner failed to conform to established deadlines and her subject change could have been rejected on that ground alone as "reasonably related to pedagogical concerns."

However, Ms. Ramsey's fear that Petitioner's motivation for changing her paper was because

of her familiarity with the subject and the ease with which it could be written is also a legitimate pedagogical concern. Ms. Ramsey was also fearful that a paper based largely on a student's personal religious beliefs could not be criticized for style, context, accuracy, source documentation, etc. without inciting personal offense, particularly for a ninth grade student. This, too, is a legitimate pedagogical concern.

(J.A. 235-236).

4. The United States Court of Appeals for the Sixth Circuit affirmed. The court acknowledged that "[F]ederal courts should exercise particular restraint in classroom conflicts between student and teacher over matters falling within the ordinary authority of the teacher over curriculum and course context." Pet. App. 6. The court further stated:

The lawyer for the Petitioner contended at oral argument that all of Ms. Ramsey's reasons are pretexts for punishing her for her desire to express her thoughts about the life of Jesus. He seemed to believe that the teacher limited Petitioner's speech because of hostility to her religion, and he argued that we should draw an inference of lying from the two "mistaken" reasons. The

argument that Ms. Ramsey was untruthful in expressing her real reasons has no basis in this record, as both the School Board and the District Court found, and arises from an unfortunate tendency in lawsuits for parties to cavil at their opponents through unsupported accusations. There is no basis for finding a real dispute of fact about Ms. Ramsey's motives, and the District Court was therefore correct in disposing of the case on summary judgment.

Pet. App. 9.

Judge Batchelder in a concurring opinion opined that the facts of this case did not present a constitutional claim. She reasoned that the Respondent teacher did not engage in restricting Petitioner's expression, but simply "engaged in restricting [Petitioner's] choice of topic for a research paper." Pet. App. 11.

SUMMARY OF THE ARGUMENT

I. This case presents no issue appropriate for the Court's exercise of its discretionary jurisdiction. The actions of the respondent teacher were "reasonably related to legitimate pedagogical concerns," and therefore there is no first amendment issue presented in this case.

II. The viewpoint discrimination argument advanced by Petitioner is inapposite in this case because this case involved a research and writing assignment within a secondary school curriculum, supervised by faculty, and designed to impart particular research and writing skills, which is a scenario properly viewed under this Court's decision in Hazelwood School District v. Kuhlmeir, 484 U.S. 260, 108 S. Ct. 562, 98 L. Ed. 2d 592 (1988).

REASONS FOR DENYING THE WRIT

The Petitioner fails to satisfy criteria traditionally applied by the Court in determining whether to grant a Writ of Certiorari. The court below properly held that this Court's decision in Hazelwood School District v. Kuhlmeir, 484 U.S. 260, 108 S. Ct. 562, 98 L. Ed. 2d 592 (1988) supplied the rule of decision, and that there were no disputed issues of material fact as to whether the actions of the respondent teacher were "reasonably related to a legitimate pedagogical concern."

I. THE SIXTH CIRCUIT PROPERLY VIEWED THIS CASE UNDER THIS COURT'S HOLDING IN HAZELWOOD.

This case is about the right of a teacher to control her classroom, and whether the federal courts should be called upon each time a student does not get his or her way. Looking properly at the issue in this case, it is clear that this Court's holding in Hazelwood School District v. Kuhlmeir, 484 U.S. 260, 108 S. Ct. 562, 98 L. Ed. 2d 592 (1988) supplies the rule of decision, and that there is no conflict among the circuits or among this Court's decisions, as suggested by Petitioner.

In Hazelwood this Court made it abundantly clear that educators have far greater control over student expression when it occurs within activities which

"may fairly be characterized as part of the school curriculum, whether or not they occur in a traditional classroom setting, so long as they are supervised by faculty members and designed to impart particular knowledge or skills to student participants and audiences." Hazelwood 484 U.S. at 271, 108 S. Ct. at 570, 98 L. Ed. 2d at 605.

Without question, the research paper assignment at issue in this case was within the school curriculum, was in the classroom setting, was supervised by faculty and was designed to teach particular research and writing skills. Likewise, there are no disputed material fact issues as to whether the respondent teacher's actions were "reasonably related to legitimate pedagogical concerns," a requirement also articulated by this Court in Hazelwood.

As found by the District Court, and as affirmed by the Sixth Circuit, the respondent teacher's refusal to allow the change of topic as a result of the blatant refusal by the Petitioner to conform to the procedural deadlines was "reasonably related to a legitimate pedagogical concern." Furthermore, the lack of resources in the Dickson County Junior High School library, the student's familiarity with the subject and the ease by which it could be written, as well as avoiding potential misunderstandings that may arise from classroom criticisms of grammar, organization, style or content of the paper were all "legitimate pedagogical concerns" which supported the teacher's actions. Simply put, there is

no issue of national importance raised by this case which has not been addressed in Hazelwood, and this Court should not exercise its discretionary jurisdiction in this case.

II. PETITIONER'S VIEWPOINT
DISCRIMINATION ARGUMENT IS
INAPPOSITE TO THE FACTS IN THIS CASE

Petitioner argues that the decision below is inconsistent with this Court's holdings in Lamb's Chapel v. Center Moriches Union Free School District, 113 S. Ct. 2141 (1993) and Rosenberger v. Rector and Visitors of the University of Virginia, 115 S. Ct. 2510 (1995). Petitioner claims that the viewpoint discrimination disallowed in those cases requires a different result in the case at bar. This argument is misplaced.

Neither Lamb's Chapel nor Rosenberger involved secondary classroom curriculum, much less an assignment designed to impart research and writing skills to fourteen year olds.⁴ The viewpoint-neutral requirement placed on a

4. Likewise, the cases cited by Petitioner for the proposition that a conflict exists among the various circuits do not involve secondary classroom curriculum, much less the skill-specific lesson of a research and writing assignment, requiring source documentation and classroom critique.

school district to make school premises equally available to religious and non-religious groups as well as the viewpoint-neutral requirement placed on a university to fund equally religious oriented off campus student groups and non-religious student groups can hardly be said to dictate the result in this case.

Is Petitioner suggesting that deadlines do not count? Should a student be allowed to unilaterally choose what he or she will be taught? Should the student be in charge of deciding what topics are capable of research and what topics can be adequately documented within the Dickson County Junior High School library? Was Petitioner mature enough to have endured criticism of her paper for style, grammar, organization and content when the topic of her paper involved her personal religious redeemer? What about the other students in the class who were to have participated in the group sharing and critiquing of fellow students' papers? What more legitimate pedagogical concerns are necessary?

It is respectfully submitted that the answers to these questions should not be decided by the federal courts. These questions should be decided by the classroom teachers who know the students, who know the libraries, and who know the particular skills sought to be imparted, so long as the teachers' actions are "reasonably related to legitimate pedagogical concerns," a conclusion consistent with this Court's

holding in Hazelwood.

CONCLUSION

For the foregoing reasons,
Petitioner's request for a Writ of
Certiorari should be denied.

Respectfully Submitted,

Laurence M. McMillan, Jr.
Counsel of Record
CUNNINGHAM, MITCHELL, HICKS,
HICKS, BROLLIER
& McMILLAN
310 Franklin St.
Clarksville, TN 37040
(615) 552-1480

Allan D. Kerns
Attorney at Law
220 N. Main Street
Post Office Box 546
Dickson, TN 37055
(615) 446-2304